

Shipo LLC — Referral Partner Agreement

STATUS: DRAFT — FOR DELAWARE ATTORNEY REVIEW ONLY. NOT FOR USE OR SIGNATURE.

Prepared by Shipo LLC (non-attorney). This document is not legal advice. It must be reviewed and approved by a licensed Delaware attorney before it is sent to any partner or executed. Bracketed items and margin notes flag points requiring counsel's decision.

This Referral Partner Agreement ("Agreement") is entered into as of the date of the last signature below (the "Effective Date") by and between:

- **Shipo LLC**, a Delaware limited liability company with its principal place of business at 310 Cornell Dr, Wilmington, DE 19801 ("Shipo" or "Company"); and
- _____ ("Partner"), located at _____.

Shipo and Partner are each a "Party" and together the "Parties."

1. Purpose

Partner wishes to refer prospective clients to Shipo for third-party logistics (3PL), FBA prep, and fulfillment services ("Services"). Shipo wishes to compensate Partner for qualified referrals on the terms below. This Agreement is non-exclusive; nothing here prevents either Party from working with other partners, referral sources, or providers.

2. Referrals

2.1 A "Referral" is a prospective client that Partner introduces to Shipo in writing (email or the Shipo partner form) and that has not, within the prior [12] months, been: (a) an existing Shipo client; (b) already in Shipo's active sales pipeline; or (c) referred by another partner first.

2.2 Shipo will confirm in writing whether a submitted Referral is accepted as a new, non-duplicate lead. Shipo has sole discretion over whether to accept any prospective client and over the terms of any client engagement.

3. Qualification & Commission

3.1 **Qualified Referral.** A Referral becomes a "Qualified Referral" when the referred client (a) signs a Shipo services agreement and (b) is invoiced for and pays for at least [one full month] of Services at or above Shipo's then-current **\$500 monthly minimum**.

3.2 **Commission.** For each Qualified Referral, Shipo will pay Partner a **one-time commission of \$300 USD**. [ATTORNEY NOTE: confirm one-time vs. recurring; the current business model is one-time, gated by the \$500/mo minimum so Shipo does not pay out on accounts that are unprofitable to serve.]

3.3 **Payment timing.** Commission is payable within [30] days after the referred client pays its first qualifying invoice.

3.4 **Clawback / chargeback.** If the referred client cancels, charges back, or receives a refund such that the qualifying month is not actually paid within [60] days, no commission is owed; if already paid, Partner will [refund it / have it offset against future commissions]. [ATTORNEY NOTE: choose mechanism and cure period.]

3.5 **Minimum thresholds.** No commission is owed on referred accounts that never reach the \$500 monthly minimum.

4. Taxes & Independent Contractor Status

4.1 Partner is an independent contractor, not an employee, agent, partner, or joint venturer of Shipo. Partner has no authority to bind Shipo or to quote prices, make promises, or sign agreements on Shipo's behalf.

4.2 Partner is responsible for all taxes on commissions received. Shipo will issue an IRS Form 1099 where required; Partner will provide a completed **Form W-9** before any commission is paid. [ATTORNEY NOTE: confirm 1099-NEC handling and W-9 gate.]

5. Partner Conduct

Partner will: (a) represent Shipo's Services truthfully and only using Shipo-approved materials; (b) not make guarantees about pricing, results, tax outcomes, or savings; (c) comply with applicable laws including the CAN-SPAM Act and anti-spam / do-not-contact rules in any outreach; and (d) not use Shipo's name, logo, or trademarks except as approved in writing.

[ATTORNEY NOTE: Delaware "0% sales tax" is a location fact only. Partner must not represent that using Shipo lowers a client's own sales-tax obligations. Consider an explicit prohibition on tax-benefit claims.]

6. Confidentiality

Each Party will keep the other's non-public business information (including client lists, pricing, and commission terms) confidential and use it only to perform under this Agreement. This survives termination for [2] years.

7. Term & Termination

7.1 This Agreement begins on the Effective Date and continues until terminated.

7.2 Either Party may terminate for convenience on [30] days' written notice.

7.3 Commissions on Qualified Referrals that qualified **before** termination remain payable under Section 3. No commissions accrue on referrals submitted after termination.

8. Limitation of Liability

Except for breaches of confidentiality (Section 6) or Partner's indemnification obligations, neither Party is liable for indirect, incidental, or consequential damages, and each Party's total liability is capped at the total commissions paid or payable in the [12] months before the claim. [ATTORNEY NOTE: confirm cap and carve-outs.]

9. Indemnification

Partner will indemnify Shipo against claims arising from Partner's misrepresentations, unauthorized promises, or unlawful outreach. [ATTORNEY NOTE: confirm mutual vs. one-way.]

10. Governing Law & Disputes

This Agreement is governed by the laws of the State of Delaware, without regard to its conflict-of-laws rules. The Parties consent to [venue: courts located in Delaware / binding arbitration in Delaware]. [ATTORNEY NOTE: choose forum + arbitration vs. courts.]

11. General

Entire agreement; no oral modifications; assignment only with consent; notices in writing; severability; counterparts and electronic signatures (including DocuSign) are valid.

Signatures

Shipo LLC

Signature: _____ \s1\

Name: Ophir Schultz \n1\

Title: Owner / Principal

Date: _____ \d1\

Partner

Signature: _____ \s2\

Name: _____ \n2\

Title: _____

Date: _____ \d2\

DocuSign anchor tags (\s1\ \n1\ \d1\ signer 1 = Shipo; \s2\ \n2\ \d2\ signer 2 = Partner) are placed for automated tab positioning and are removed/hidden at send time.